



File No.: EXP202413629

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure conducted by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 11, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in the procedure for the exercise of rights of file number EXP202309602 followed against CRIDOLMA BARCELONA S.L. (hereinafter, the respondent).

In this procedure, it is recorded that the complainant exercised the right of access to the personal data concerning them, without this request being duly addressed, issuing a resolution requiring the following:

“FIRST: TO GRANT the complaint filed by A.A.A. considering that Article 15 of the GDPR has been infringed and to urge CRIDOLMA BARCELONA S.L., with NIF B66068149, to send to the complainant, within ten working days following the notification of this resolution, a certification addressing the exercised right of Access or to deny it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Failure to comply with this resolution could constitute an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.”

SECOND: The notification of the resolution of the procedure for the exercise of rights, in which the respondent was granted a period of ten working days to address the exercise of the right of access, was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic means, being received by the responsible party on December 11, 2023.

THIRD: After the period granted for the required actions in said resolution had elapsed, and having submitted the complainant, on March 13, 2024, with entry registration number REGAGE24e00019457263, a written statement indicating that the resolution had not been complied with, a request was sent three times to the respondent to submit, within five working days, a certification of compliance with said resolution to the complainant and, within ten working days, to notify this Agency of the measures adopted.

FOURTH: The three notifications of the aforementioned request were carried out in accordance with the rules established in the LPACAP.

The first two notifications, which were carried out electronically, were not collected by the responsible party within the availability period, as recorded in the acknowledgments of receipt in the file, thus being understood as carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on April 20 and July 6, 2024.

The third notification, which was sent by postal mail, was returned to the sender by the postal service as unknown on September 19, 2024, as recorded in the acknowledgment of receipt in the file, despite being sent to the registered office and tax address of the respondent.

In accordance with Article 42.1 of the LPACAP, the notification of the request sent by postal mail was also made available to the interested party electronically through the single enabled electronic address.

FIFTH: After the period of the initial resolution and the subsequent requests had elapsed, the respondent has not sent a response to this Agency that proves that they have attended to the exercised right of access or that they have denied it with justification indicating the reasons why the request cannot be attended to.

SIXTH: No ordinary administrative appeal can be filed against the aforementioned resolution due to the expiration of the established deadlines for it. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed and that a precautionary suspension of the resolution has been

requested.

SEVENTH: On October 15, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

EIGHTH: The initiation agreement was notified to the respondent, in accordance with the rules established in the LPACAP, by means of an announcement published in the Official State Gazette dated November 13, 2024, after the attempt to notify by postal mail at the registered office and tax address of the respondent was unsuccessful, as evidenced in the file.

In accordance with Article 42.1 of the LPACAP, the notification of the initiation agreement was also made available to the interested party electronically through the single enabled electronic address.

NINTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/7

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the agreement to open the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement about the responsibility attributed, it may be considered a proposal for resolution. In the present case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered, in this case, a proposal for resolution.

TENTH: According to the report obtained from the AXESOR tool, the entity CRIDOLMA BARCELONA S.L. is an SME (Microenterprise) established in 2013 with a turnover of (...) euros in 2022.

In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in the present procedure,

PROVEN FACTS

FIRST: The resolution of the rights exercise procedure of file number EXP202309602 and the requirements for compliance with it indicated in the first, second, third, and fourth antecedents were notified in accordance with the provisions of the LPACAP. This resolution became firm and enforceable due to the expiration of the deadlines established for filing the appeals indicated therein.

SECOND: The respondent has not sent any response to this Agency that proves compliance with the resolution.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation breached

In light of the facts presented, it is considered that the respondent has breached the resolution of the

Spanish Agency for Data Protection.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the respondent, for violation of Article 58.2.c) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

c) to order the controller or processor to comply with the requests for exercising the rights of the data subject under this Regulation;"

III

Classification and qualification of the infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority under Article 58, paragraph 2, shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount."

For the purposes of the limitation period for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"m) The failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

IV

Imposed sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR. Furthermore, to ensure a consistent application of the GDPR, the Guidelines 04/2022 issued by the European Data Protection Board on the calculation of fines under the GDPR must be taken into consideration.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/7

The GDPR provides maximum amounts in Article 83, paragraphs 4 to 6, where various types of different conduct are grouped. In this regard, it is noted that the infringement determined in this procedure is classified under Article 83.6 of the GDPR, therefore, within the set of more serious infringements that carry a higher sanction range.

Furthermore, the seriousness of the infringement must be indicated in accordance with Article 83.2.a), due to its nature, given the protected interests and its place within the framework of personal data protection. By failing to demonstrate compliance with measures aimed at correcting the effects of an infringement or aligning processing with legality, one persists in an unlawful situation, in addition to disobeying the corrective powers that the GDPR grants to supervisory authorities to fulfill their primary task: to monitor the application of the GDPR and enforce it.

Additionally, the company's turnover is taken into consideration as a relevant element to be accounted for in order to impose an effective, dissuasive, and proportionate fine, in accordance with Article 83, paragraph 1, of the GDPR.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.2 of the GDPR classified under Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of €9,000.00 (NINE THOUSAND euros).

V

Adoption of Measures

This Agency agrees to impose on the responsible party the adoption of appropriate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of the

aforementioned Article 58.2 d) of the GDPR, which states that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on CRIDOLMA BARCELONA S.L., with NIF B66068149, for an infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR, a fine of €9,000.00 (NINE THOUSAND euros).

SECOND: TO ORDER CRIDOLMA BARCELONA S.L., with NIF B66068149, that pursuant to Article 58.2.d) of the GDPR, within ten working days from the date this resolution becomes final and enforceable, to send to the complainant a certification at

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/7

that the right of access exercised is attended to or is denied with justification, indicating the reasons why the request cannot be granted, in accordance with the provisions established in the resolution of the rights exercise procedure of file number EXP202309602. Likewise, the actions taken must be communicated to this Agency within the same timeframe.

THIRD: NOTIFY this resolution to CRIDOLMA BARCELONA S.L.

FOURTH: This resolution will be executable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes executable, in accordance with the provisions of art. 98.1.b) of the LPACAP, within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executable, if the date of executability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a reconsideration appeal before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party

expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/7